

liberal construction, and as upon the death of A. the whole estate passed by survivorship to B., the power being annexed to the estate, was held to survive with it (1).

[*612] * 2. **Survivorship where the power is given to trustees by name.** — A distinction may perhaps be thought

(1) In examining the cases of powers before the Statute of Uses, the following points may be usefully noticed.

1. **Before Statute of Uses a power given by will over the legal estate was void.** — A person seised of the legal estate of lands could not, before the Statute of Wills, have devised them directly, and therefore he could not have gained his object indirectly by means of a power: had a testator devised that A. and B. should sell his estate, the authority was void.

2. **But over the use was good.** — But a use was devisable, and therefore, if *cestui que use* had devised the lands to a stranger, though the legal estate did not pass (the Statute of Richard the Third, which made mention of feoffments and grants, not extending to wills), the devisee might still have sued his *subpena* in Chancery, and have compelled the feoffees to execute a conveyance of the estate.

3. **The execution of the power over the use passed the legal estate.** — If *cestui que use* had devised that A. and B. should sell, and A. and B. in pursuance of the authority had made a feoffment or grant, this assurance seems to have operated retrospectively as the assurance of the testator, and so, falling within the words of the Statute of Richard, served to pass even the legal estate.

4. **The power might be vested in the feoffees.** — And *cestui que use* might have devised such an authority even to his feoffees, and the power would have been construed in the same manner as if it had been devised to a stranger. Thus where a man enfeoffed A. and B. to his own use, and afterwards devised that the said A. and B. should sell the estate and apply the proceeds, &c., and A. and B., on the decease of the testator, enfeoffed C. and D. to the like uses, it was ruled that A. and B. might still sell under the power, although they had parted with the legal fee.

5. **Until the power was executed the feoffees were trustees for the heir.** — Until the sale was effected, the feoffees were trustees for the testator's heir, and were bound to account to him for the accruing rents and profits; and if the power which, whether given to a stranger or to the feoffees, was construed as a naked authority, became extinguished by any means, as by the death of the donees of the power, the heir was as absolutely entitled to the use in fee, as if no will had been made.

6. **The object of the power could have compelled the execution.** — So long as the power subsisted, the person who would suffer by the extinguishment of the power might have compelled the donees, by filing a bill in Chancery, to execute the power.

7. **If no specific object of the power, the execution was optional.** — But if the proceeds of the sale were to be distributed *in pios usus*, as no one could plead a personal loss by the non-execution of the power, there was no one to sue a *subpena*, and the donees of the power were left to the arbitrary exercise of their own discretion. See case *temp. H. 7. Treat. of Powers*, Appendix No. 1, 6th edit.